

24STCV13321 24STCV13321

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MOTIONS

The Court

tenders the following tentative decision in the matter Charo Cantrell, et al. v. Zio Entertainment Network LLC, et al., Los Angeles County Superior Court case number 24STCV13321, set for hearing on September 2, 2026. Zio Entertainment Network, LLC (Defendant) moves for orders compelling further responses to form interrogatories, set one (FROGs), special interrogatories, set one (SPROGs), and requests for production of documents, set one (RFPs) and deeming requests for admissions, set one (RFAs) admitted, propounded upon Keith Burke and Charo Cantrell (collectively, Plaintiffs). Defendant also requests a total \$15,000 in monetary sanctions. Plaintiffs oppose the motions. Defendant's motions to compel further responses and deem RFAs admitted are deemed moot but granted in part with respect to the \$2,100 the Court awards in sanctions.

A.

Legal Standard

A party may move for an order

compelling further responses to a request for production of documents if the propounding party deems that responses are incomplete, evasive, or contain meritless objections. (Code Civ. Proc., § 2031.310, subd. (a).) A motion to compel further responses to requests for production "shall set forth specific facts showing good cause justifying the discovery sought by the inspection demand." (Id., § 2031.310, subd. (b)(1).) A party may also move for an order compelling further responses to interrogatories if the propounding party deems that responses are incomplete, evasive, contain meritless objections, or improperly exercise the option to produce documents under section 2030.230. (Id., § 2030.300, subd. (a).)

Under section 2033.280, the Court shall grant an order deeming RFAs admitted unless the responding party serves substantially compliant responses before the hearing on the motion. A finding of substantial compliance depends on “whether answers in a proposed response are ‘as complete and straightforward’ as reasonably possible, as explicitly required by section 2033.220.” (Katayama v. Continental Investment Group (2024) 105 Cal.App.5th 898, 907.) A party not in possession of information or knowledge necessary to respond to a request for admission must state in the answer that “a reasonable inquiry concerning the matter in the particular request has been made, and that the information known or readily obtainable is insufficient to enable that party to admit the matter.” (Code Civ. Proc., § 2033.220, subd. (c).)

B. Discussion

Defendant propounded the relevant discovery on February 17, 2026. (Girgis Decl. ¶ 2.) Responses were due on March 19, but Plaintiffs received an extension until March 30. (Id. ¶ 3.) Plaintiffs served unverified responses consisting of solely objections on March 31. (Id. ¶ 5.) Meet and confer efforts over the next few months proved unsuccessful. (Id. ¶¶ 6–7.) As of June 30, Defendant had yet to receive further responses and thus filed the present motions. (Id. ¶ 8.) Plaintiffs have since provided verified responses to all discovery sets, and Defendant has not challenged them as deficient. Thus, the present motions to compel further responses and deem RFAs admitted are rendered moot. However, sanctions are still appropriate.

Sanctions may be awarded where a party unsuccessfully opposes a motion to compel further responses, provided that the party does so without substantial justification. (Code Civ. Proc., §§ 2030.300, 2031.310.) Here, while Plaintiffs’ further responses rendered the present motions moot, they do not constitute substantial justification for opposing Defendant’s motions. Indeed, the responses indicate that the underlying motions were properly brought. Further, sanctions with respect to a motion to deem RFAs admitted are mandatory even if responses are provided before the hearing.

Counsel testifies to an hourly rate of \$400, which the Court credits. (Girgis Decl. ¶ 10.) Counsel alleges 2 hours spent meeting and conferring and preparing a brief, 2 hours spent reviewing the

opposition and preparing a reply, and 2 hours spent appearing at the hearing with respect to each motion. (Ibid.) Counsel also alleges \$100 in filing fees. (Ibid.) The Court finds these estimates unreasonable, given the duplicative nature of the motions and Defendant's lack of any reply. Instead, the Court credits 2 hours spent meeting and conferring regarding all motions, 2 hours preparing all briefs, 1 hour spent appearing at the hearing, and \$100 in filing fees. Accordingly, the Court awards Defendant total sanctions in the amount of \$2,100 ($[\$400 \text{ per hour}] \times [5 \text{ hours}] + [\$100 \text{ filing fees}] = \$2,100$).

C. Conclusion

The Court grants Defendant's motions in part. Plaintiffs need not provide further responses and RFAs are not deemed admitted. Defendants are awarded \$2,100 in sanctions, to be paid by Plaintiffs' counsel within 30 days.